
Indigenous Law Institute

Healing, Restoration, and Rematriation

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For Native nations and peoples, being able to live our traditions means fulfilling our sacred responsibilities to the Earth, to our communities, and to all living things. This necessarily involves the ability to maintain and to pass on to every new generation the languages, ceremonies, customs, and laws of our respective peoples. It also means maintaining our sacred ties to our ancestral lands, in keeping with the Original Instructions given to us by the Creator. It further means the right to honor and to protect the skeletal remains of our ancestors. Above all, when we talk about the spiritual traditions of our nations, we are talking about the ideal of maintaining a free Way of Life within our traditional territories.

Unfortunately for us, however, the United States has a political economy based on the concept of Christian imperium, which is “a dominion, state or sovereignty” that insists on expanding in population and territory, and constantly increasing in strength and power. George Washington referred to his newly-formed country as a ‘rising empire,’ and Thomas Jefferson declared, “I am persuaded no constitution was ever before as well calculated as ours for extensive empire.” The toll that U.S. empire-building has taken on Native peoples in loss of lives and lands is truly staggering. In a very real sense, the sacred items and belongings of our peoples now held by the dominant society are the “spoils” of the wars waged against our respective peoples.

According to the tradition of English common law, non-Christian Indians were categorized as perpetual enemies of the Crown. That legal tradition was followed by the newly-formed United States, and remains embedded in U.S. law even to this day. U.S. imperium is, to a large extent, politically and legally premised on the doctrine of Christian discovery and dominion, dating back to the Court ruling *Johnson & Graham’s Lessee v. McIntosh*, 8 Wheat., 543, (1823). In Western law, dating back to the days of Christendom, unbaptized people were regarded as subhuman. Accordingly, the ancestral remains of such “subhuman” people were not regarded in Western culture as deserving of respect, and thus became regarded as “federal” or “state” property. NAGPRA appears to represent a significant step toward eventually overturning this doctrine.

Today, repatriation efforts are aimed at assisting our communities to heal from generations of genocide and cultural devastation. But, if “repatriation” involves a “return of prisoners of war to their home country,” and is a term used to refer to skeletal remains and sacred ceremonial objects, what term do we use to refer to the “home countries” that are themselves, in many cases, now being “held captive” by the United States? I am referring, of course, to such culturally essential places as Mt. Graham, the Black Hills, the Wallowa Valley, Lyle Point, the lands of the Havasupai, the Western Shoshone lands, and many others. I’d like to propose “rematriation” as a useful concept.

By “rematriation” I mean “to restore a living culture to its rightful place on Mother Earth,” or “to restore a people to a spiritual way of life, in sacred relationship with their ancestral lands, without external interference.” As a concept, rematriation acknowledges that our ancestors lived in spiritual relationship with our lands for thousands of years, and that we have a sacred duty to maintain that relationship for the benefit of our future generations.

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